

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent*.

DOCKET NO. 25-07

Served: July 29, 2025

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

SCHEDULING ORDER

On July 28, 2025, the parties filed a joint status report and proposed discovery schedule. (Dkt. 14.) The parties state that they have made their initial disclosures and contacted the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS). The parties are reminded *not* to state the parties' positions on whether to agree to mediation or their settlement positions in communication with the undersigned.

In the complaint and answer, the parties each requested an oral hearing. Pursuant to Commission Rules 62(a)(5) and 62(b)(3), the "presiding officer will determine whether an oral hearing is necessary." 46 C.F.R. § 502.62(a)(5), (b)(3). At this point in the proceeding, it is not clear that an oral hearing is necessary. Accordingly, the parties' requests for an oral hearing are **DENIED WITHOUT PREJUDICE**.

The discovery schedule proposed by the parties is reasonable and substantially adopted with minor adjustments to clarify the parties' obligations and ensure a fully developed record within the applicable deadline to complete discovery. Pursuant to 46 C.F.R. § 502.141(g), discovery must be completed within 150 days of the service of the answer on June 27, 2025, that is no later than November 24, 2025. (Dkt. 12.)

The parties are hereby **ORDERED** to follow this schedule:

August 15, 2025	Service of initial written discovery requests
October 8, 2025	Complete production of documents and electronically stored information (ESI) in response to initial requests for production of documents
October 8, 2025	Fact witness depositions may commence
October 10, 2025	Disclosure of Complainant's expert reports, if any

October 22, 2025	Last day parties may serve supplemental discovery requests
October 31, 2025	Complete depositions of fact witnesses
November 10, 2025	Disclosure of Respondent's rebuttal expert reports, if any
November 12, 2025	Expert witness depositions may commence
November 24, 2025	Close of all discovery
January 5, 2026	Complainant's brief, proposed findings of fact, and appendix
February 6, 2026	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
February 20, 2026	Complainant's reply brief and responses to proposed findings of fact

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension.

Parties must follow the instructions in the Initial Order, including but not limited to the requirements for briefs, appendices, and confidential information.

Any filing submitted without page numbers, including exhibits, may be rejected. Parties may be required to refile any documents that do not comply with the requirements in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email an electronic copy of required documents in a word-processing format to

the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.

MARY A. HERVEY -S

Digitally signed by MARY A.

HERVEY -S

Date: 2025.07.29 08:24:20 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge